

The University Grants Commission (Promotion of Academic Integrity and Prevention of Plagiarism in Higher Educational Institutions) Regulations, 2018

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The University Grants Commission (Promotion of Academic Integrity and Prevention of Plagiarism in Higher Educational Institutions) Regulations, 2018

Rule

THE-UNIVERSITY-GRANTS-COMMISSION-PROMOTION-OF-ACADEMIC-INTEGRITY-AND-PREVENTION-OF-PLAGIARISM-IN-HIGHER-EDUCATIONAL-INSTITUTIONS-REGULATIONS-2018 of 2018

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The University Grants Commission (Promotion of Academic Integrity and Prevention of Plagiarism in Higher Educational Institutions) Regulations, 2018

Published vide Notification No. F. 1-18/2010(CPP-2), dated 23.7.2018

F. 1-18/2010(CPP-II). - Whereas, University Grants Commission (UGC), as per UGC Act, 1956, is mandated to coordinate and determine the standards of higher education;

And whereas, assessment of academic and research work done leading to the partial fulfillment for the award of degrees at Masters and Research level, by a student or a faculty or a researcher or a staff, in the form of thesis, dissertation and publication of research papers, chapters in books, full-fledged books and any other similar work, reflects the extent to which elements of academic integrity and originality are observed in various relevant processes adopted by Higher Educational Institutions (HEIs);

Therefore, in exercise of the powers conferred by clause (j) of Section 12 read with clauses (f) and (g) of subsection (1) of Section 26 of the University Grants Commission Act, 1956, the University Grants Commission hereby makes the following regulations:-

1.

Short title, application and commencement.

(a)

These regulations shall be called the University Grants Commission (Promotion of Academic Integrity and Prevention of Plagiarism in Higher Educational Institutions) Regulations, 2018.

(b)

They shall apply to the students, faculty, researchers and staff of all Higher Educational Institutions in the country.

(c)

These regulations shall come into force from the date of their notification in the Official Gazette.

2.

Definitions.

- In these regulations, unless the context otherwise requires-

(a)

"Academic Integrity" is the intellectual honesty in proposing, performing and reporting any activity, which leads to the creation of intellectual property;

(b)

"Author" includes a student or a faculty or a researcher or staff of Higher Educational Institution (HEI) who claims to be the creator of the work under consideration;

(c)

"Commission" means the University Grants Commission as defined in the University Grants Commission Act, 1956;

(d)

"Common Knowledge" means a well known fact, quote, figure or information that is known to most of the people;

(e)

"Degree" means any such degree specified by the University Grants Commission, by notification in the Official Gazette, under section 22 of the University Grants Commission Act, 1956;

(f)

"Departmental Academic Integrity Panel" shall mean the body constituted at the departmental level to investigate allegations of plagiarism;

(g)

"Faculty" refers to a person who is teaching and/or guiding students enrolled in an HEI in any capacity whatsoever i.e. regular, ad-hoc, guest, temporary, visiting etc;

(h)

"Higher Educational Institution (HEI)" means a university recognized under section 2(f) of the UGC Act, 1956 or an institution deemed to be university under section 3 of the UGC Act, 1956 or an affiliating college/institution or a constituent unit of a university;

(i)

"Information" includes data, message, text, images, sound, voice, codes, computer programs, software and databases or microfilm or computer generated microfiche;

(j)

"Institutional Academic Integrity Panel" shall mean the body constituted at Institutional level to consider recommendations of the departmental academic integrity panel and take appropriate decisions in respect of allegations

of plagiarism and decide on penalties to be imposed. In exceptional cases, it shall investigate allegations of plagiarism at the institutional level;

(k)

"Notification" means a notification published in the Official Gazette and the expression "notify" with its cognate meanings and grammatical variation shall be construed accordingly;

(l)

"Plagiarism" means the practice of taking someone else's work or idea and passing them as one's own.

(m)

"Programme" means a programme of study leading to the award of a masters and research level degree;

(n)

"Researcher" refers to a person conducting academic/scientific research in HEIs;

(o)

"Script" includes research paper, thesis, dissertation, chapters in books, full-fledged books and any other similar work, submitted for assessment/opinion leading to the award of master and research level degrees or publication in print or electronic media by students or faculty or researcher or staff of an HEI; however, this shall exclude assignments/term papers/project reports/course work/essays and answer scripts etc.;

(p)

"Source" means the published primary and secondary material from any source whatsoever and includes written information and opinions gained directly from other people, including eminent scholars, public figures and practitioners in any form whatsoever as also data and information in the electronic form be it audio, video, image or text; Information being given the same meaning as defined under Section 2 (1) (v) of the Information Technology Act, 2000 and reproduced here in Regulation 2 (l);

(q)

"Staff" refers to all non-teaching staff working in HEIs in any capacity whatsoever i.e. regular, temporary, contractual, outsourced etc.;

(r)

"Student" means a person duly admitted and pursuing a programme of study including a research programme in any mode of study (full time or part-time or distance mode);

(s)

"University" means a university established or incorporated by or under a Central Act, a Provincial Act or a State Act, and includes an institution deemed to be university under section 3 of the UGC Act, 1956;

(t)

"Year" means the academic session in which a proven offence has been committed.

Words and expressions used and not defined in these regulations but defined in the University Grants Commission Act, 1956 shall have the meanings respectively assigned to them in UGC Act, 1956.

3.

Objectives.

- 3.1 To create awareness about responsible conduct of research, thesis, dissertation, promotion of academic integrity and prevention of misconduct including plagiarism in academic writing among student, faculty, researcher and staff.

3.2

To establish institutional mechanism through education and training to facilitate responsible conduct of research, thesis, dissertation, promotion of academic integrity and deterrence from plagiarism.

3.3

To develop systems to detect plagiarism and to set up mechanisms to prevent plagiarism and punish a student, faculty, researcher or staff of HEI committing the act of plagiarism.

4.

Duties of HEI.

- Every HEI should establish the mechanism as prescribed in these regulations, to enhance awareness about responsible conduct of research and academic activities, to promote academic integrity and to prevent plagiarism.

5.

Awareness Programs and Trainings.

(a)

HEI shall instruct students, faculty, researcher and staff about proper attribution, seeking permission of the author wherever necessary, acknowledgement of source compatible with the needs and specificities of disciplines and in accordance with rules, international conventions and regulations governing the source.

(b)

HEI shall conduct sensitization seminars/awareness programs every semester on responsible conduct of research, thesis, dissertation, promotion of academic integrity and ethics in education for students, faculty, researcher and staff.

(c)

HEI shall :

- i. Include the cardinal principles of academic integrity in the curricula of Undergraduate (UG)/Postgraduate (PG)/Master's degree etc. as a compulsory course work/module.
- ii. Include elements of responsible conduct of research and publication ethics as a compulsory course work/module for Masters and Research Scholars.
- iii. Include elements of responsible conduct of research and publication ethics in Orientation and Refresher Courses organized for faculty and staff members of the HEI.
- iv. Train student, faculty, researcher and staff for using plagiarism detection tools and reference management tools.
- v. Establish facility equipped with modern technologies for detection of plagiarism.
- vi. Encourage student, faculty, researcher and staff to register on international researchers Registry systems.

6.

Curbing Plagiarism.

(a)

HEI shall declare and implement the technology based mechanism using appropriate software so as to ensure that documents such as thesis, dissertation, publications or any other such documents are free of plagiarism at the time of their submission.

(b)

The mechanism as defined at (a) above shall be made accessible to all engaged in research work including student, faculty, researcher and staff etc.

(c)

Every student submitting a thesis, dissertation, or any other such documents to the HEI shall submit an undertaking indicating that the document has been prepared by him or her and that the document is his/her original work and free of any plagiarism.

(d)

The undertaking shall include the fact that the document has been duly checked through a Plagiarism detection tool approved by the HEI.

(e)

HEI shall develop a policy on plagiarism and get it approved by its relevant statutory bodies/authorities. The approved policy shall be placed on the homepage of the HEI website.

(f)

Each supervisor shall submit a certificate indicating that the work done by the researcher under him/her is plagiarism free.

(g)

HEI shall submit to INFLIBNET soft copies of all Masters, Research program's dissertations and thesis within a month after the award of degrees for hosting in the digital repository under the "Shodh Ganga e-repository".

(h)

HEI shall create Institutional Repository on institute website which shall include dissertation/thesis/paper/publication and other in-house publications.

7.

Similarity checks for exclusion from Plagiarism.

- The similarity checks for plagiarism shall exclude the following:

- i. All quoted work reproduced with all necessary permission and/or attribution.
- ii. All references, bibliography, table of content, preface and acknowledgements.

iii. All generic terms, laws, standard symbols and standards equations.

Note: The research work carried out by the student, faculty, researcher and staff shall be based on original ideas, which shall include abstract, summary, hypothesis, observations, results, conclusions and recommendations only and shall not have any similarities. It shall exclude a common knowledge or coincidental terms, up to fourteen (14) consecutive words.

8.

Levels of Plagiarism.

- Plagiarism would be quantified into following levels in ascending order of severity for the purpose of its definition:

i. Level 0: Similarities upto 10% - Minor similarities, no penalty

ii. Level 1: Similarities above 10% to 40%

iii. Level 2: Similarities above 40% to 60%

iv. Level 3: Similarities above 60%

9.

Detection/Reporting/Handling of Plagiarism.

- If any member of the academic community suspects with appropriate proof that a case of plagiarism has happened in any document, he or she shall report it to the Departmental Academic Integrity Panel (DAIP). Upon receipt of such a complaint or allegation the DAIP shall investigate the matter and submit its recommendations to the Institutional Academic Integrity Panel (IAIP) of the HEI.

The authorities of HEI can also take suo-motu notice of an act of plagiarism and initiate proceedings under these regulations. Similarly, proceedings can also be initiated by the HEI on the basis of findings of an examiner. All such cases will be investigated by the IAIP.

10.

Departmental Academic Integrity Panel (DAIP).

- i. All Departments in HEI shall notify a DAIP whose composition shall be as given below:

a. Chairman - Head of the Department

b. Member - Senior academician from outside the department, to be nominated by the head of HEI.

c. Member - A person well versed with anti plagiarism tools, to be nominated by the Head of the Department.

The tenure of the members in respect of points 'b' and 'c' shall be two years. The quorum for the meetings shall be 2 out of 3 members (including Chairman).

ii. The DAIP shall follow the principles of natural justice while deciding about the allegation of plagiarism against the student, faculty, researcher and staff.

iii. The DAIP shall have the power to assess the level of plagiarism and recommend penalty(ies) accordingly.

iv. The DAIP after investigation shall submit its report with the recommendation on penalties to be imposed to the IAIP within a period of 45 days from the date of receipt of complaint/initiation of the proceedings.

11.

Institutional Academic Integrity Panel (IAIP).

- i. HEI shall notify a IAIP whose composition shall be as given below:

a. Chairman - Pro-VC/Dean/Senior Academician of the HEI.

b. Member - Senior Academician other than Chairman, to be nominated by the Head of HEI.

c. Member - One member nominated by the Head of HEI from outside the HEI

d. Member - A person well versed with anti-plagiarism tools, to be nominated by the Head of the HEI.

The Chairman of DAIP and IAIP shall not be the same. The tenure of the Committee members including Chairman shall be three years. The quorum for the meetings shall be 3 out of 4 members (including Chairman).

ii. The IAIP shall consider the recommendations of DAIP.

iii. The IAIP shall also investigate cases of plagiarism as per the provisions mentioned in these regulations.

iv. The IAIP shall follow the principles of natural justice while deciding about the allegation of plagiarism against the student, faculty, researcher and staff of HEI.

v. The IAIP shall have the power to review the recommendations of DAIP including penalties with due justification.

vi. The IAIP shall send the report after investigation and the recommendation on penalties to be imposed to the Head of the HEI within a period of 45 days from the date of receipt of recommendation of DAIP/complaint/initiation of the proceedings.

vii. The IAIP shall provide a copy of the report to the person(s) against whom inquiry report is submitted.

12.

Penalties.

- Penalties in the cases of plagiarism shall be imposed on students pursuing studies at the level of Masters and Research programs and on researcher, faculty & staff of the HEI only after academic misconduct on the part of the individual has been established without doubt, when all avenues of appeal have been exhausted and individual in question has been provided enough opportunity to defend himself or herself in a fair or transparent manner.

12.1

Penalties in case of plagiarism in submission of thesis and dissertations. - Institutional Academic Integrity Panel (IAIP) shall impose penalty considering the severity of the Plagiarism.

i. Level 0: Similarities upto 10% - Minor Similarities, no penalty.

ii. Level 1: Similarities above 10% to 40% - Such student shall be asked to submit a revised script within a stipulated time period not exceeding 6 months.

iii. Level 2: Similarities above 40% to 60% - Such student shall be debarred from submitting a revised script for a period of one year.

iv. Level 3: Similarities above 60% -Such student registration for that programme shall be cancelled.

Note 1: Penalty on repeated plagiarism - Such student shall be punished for the plagiarism of one level higher than the previous level committed by him/her. In case where plagiarism of highest level is committed then the punishment for the same shall be operative.

Note 2: Penalty in case where the degree/credit has already been obtained - If plagiarism is proved on a date later than the date of award of degree or credit as the case may be then his/her degree or credit shall be put in abeyance for a period recommended by the IAIP and approved by the Head of the Institution.

12.2

Penalties in case of plagiarism in academic and research publications. -

I. Level 0: Similarities up to 10% - Minor similarities, no penalty.

II. Level 1: Similarities above 10% to 40%

(i)

Shall be asked to withdraw manuscript.

III. Level 2: Similarities above 40% to 60%

(i)

Shall be asked to withdraw manuscript.

(ii)

Shall be denied a right to one annual increment.

(iii)

Shall not be allowed to be a supervisor to any new Master's, M.Phil., Ph.D. Student/scholar for a period of two years.

IV. Level 3: Similarities above 60%

(i)

Shall be asked to withdraw manuscript.

(ii)

Shall be denied a right to two successive annual increments.

(iii)

Shall not be allowed to be a supervisor to any new Master's, M.Phil., Ph.D. Student/scholar for a period of three years.

Note 1: Penalty on repeated plagiarism - Shall be asked to withdraw manuscript and shall be punished for the plagiarism of one level higher than the lower level committed by him/her. In case where plagiarism of highest level is committed then the punishment for the same shall be operative. In case level 3 offence is repeated then the disciplinary action including suspension/termination as per service rules shall be taken by the HEI.

Note 2: Penalty in case where the benefit or credit has already been obtained - If plagiarism is proved on a date later than the date of benefit or credit obtained as the case may be then his/her benefit or credit shall be put in abeyance for a period recommended by IAIP and approved by the Head of the Institution.

Note 3: HEIs shall create a mechanism so as to ensure that each of the paper publication/thesis/dissertation by the student, faculty, researcher or staff of the HEI is checked for plagiarism at the time of forwarding/submission.

Note 4: If there is any complaint of plagiarism against the Head of an HEI, a suitable action, in line with these

regulations, shall be taken by the Controlling Authority of the HEI.

Note 5: If there is any complaint of plagiarism against the Head of Department/Authorities at the institutional level, a suitable action, in line with these regulations, shall be recommended by the IAIP and approved by the Competent Authority.

Note 6: If there is any complaint of plagiarism against any member of DAIP or IAIP, then such member shall excuse himself/herself from the meeting(s) where his/her case is being discussed/investigated.

13.

Removal of Difficulty.

- UGC reserves the right to remove difficulty/difficulties in the course of implementations of these Regulations in consultation with the Government of India/Ministry of Human Resource Development.

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